

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS
STATE OF COLORADO

Case No.

**ORDER OF SUMMARY SUSPENSION, NOTICE OF DUTY TO ANSWER, NOTICE
TO SET AN INFORMAL PREHEARING CONFERENCE, NOTICE OF HEARING,
NOTICE OF CHARGES, AND NOTICE OF OPTION TO ENGAGE IN
ALTERNATIVE DISPUTE RESOLUTION**

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING AND IN THE STATE OF COLORADO
OF ANNGWYN HAMILTON-ST. JUST, Ph.D., LPC, LICENSE NO. 1140,

Respondent.

TO: Anngwyn Hamilton-St. Just, Ph.D., LPC

ORDER OF SUMMARY SUSPENSION

The State Board of Licensed Professional Counselor Examiners, ("Board"), having reviewed all available information as to the matters referenced below, HEREBY FINDS:

1. The respondent, Anngwyn Hamilton-St. Just, Ph.D., LPC, has been licensed as a Licensed Professional Counselor in the State of Colorado at all times relevant to this matter.
2. The Board has jurisdiction over respondent and the subject matter herein.
3. Reasonable grounds exist to believe, and the Board so finds, that the respondent has deliberately and willfully violated § 12-43-224(2)(e), C.R.S. The grounds are more fully set forth in the Notice of Charges attached hereto and are incorporated herein by reference.
4. Based on the information contained in the attached Notice of Charges, reasonable grounds exist to believe, and the Board so finds, that the public health, safety, and welfare imperatively require that emergency action be taken.

THEREFORE, IT IS HEREBY ORDERED that the license of Anngwyn Hamilton-St. Just, Ph.D., LPC, to practice professional counseling in the state of Colorado be summarily suspended until such time as she has completed a mental examination ordered by the Board

in accordance with § § 12-43-224(2)(d) and (e), and § 24-4-104(4), C.R.S. or until such time as these proceedings determine whether respondent's license should be further disciplined in accordance with § 12-43-222, C.R.S.

Pending the outcome of said proceedings, IT IS FURTHER ORDERED that Anngwyn Hamilton-St. Just immediately cease, desist, and refrain from any further acts for which a license to practice as a professional counselor is required by the laws of the State of Colorado and that her license be immediately submitted to the Board pending the outcome of this proceeding.

DATED this 15th day of January, 2004.



AMOS D. MARTINEZ
Program Administrator
State Board of Licensed Professional
Counselor Examiners

NOTICE OF DUTY TO ANSWER

YOU ARE HEREBY NOTIFIED that, pursuant to C.R.S. § 24-4-105(2)(b), you are required to file a written answer to the attached Notice of Charges with the Division of Administrative Hearings, 1120 Lincoln Street, Suite 1400, Denver, Colorado 80203, within thirty (30) days after the mailing of this Notice of Duty to Answer, Notice to Set an Informal Prehearing Conference, Notice of Hearing and Notice of Charges. You must also mail a copy of such answer to the attorney who has signed this Notice of Duty to Answer, Notice to Set an Informal Prehearing Conference, Notice of Hearing and Notice of Charges below.

If you fail to file your written answer within the applicable time period, an order entering a default decision may be issued against your license for professional counseling for the relief requested in the Notice of Charges, or such other penalties which may be provided for by law, without further notice to you.

NOTICE TO SET AN INFORMAL PREHEARING CONFERENCE

YOU ARE HEREBY NOTIFIED that counsel for petitioner, will appear at 8:30 a.m. on Friday, February 6, 2004, in the Office of the Division of Administrative Hearings, 1120 Lincoln Street, Ste. 1400, Denver, Colorado 80203, in order to set a date, time, and location for an informal prehearing conference regarding the following Notice of Charges. At the informal prehearing conference the parties will set a hearing date, determine an expedited discovery schedule and obtain motion dates and prehearing conference dates as necessary. You may be present in person or by counsel or you may make prior arrangements to be reached by telephone at the time and date specified above, by contacting the undersigned attorney prior to the day of setting.

NOTICE OF HEARING

YOU ARE HEREBY NOTIFIED that pursuant to § § 12-43-224 and 24-4-104 and 24-4-105, C.R.S., a hearing will be held before an authorized Administrative Law Judge at a time and location to be determined at the informal prehearing conference, for the purpose of determining whether the license to practice professional counseling in Colorado of Amwygn Hamilton-St. Just, Ph.D., LPC, should remain suspended and other lawful discipline imposed on her practice of professional counseling for violations of § 12-43-224(2)(d) and 12-43-222(1)(b), C.R.S.

YOU ARE FURTHER NOTIFIED that at the hearing in this matter you shall have the right to appear in person and/or by legal counsel; to present evidence in your own behalf; to cross-examine any witnesses presented by the petitioner; and to rebut any evidence presented by the petitioner. You may also have subpoenas issued on your behalf upon request to the Administrative Law Judge.

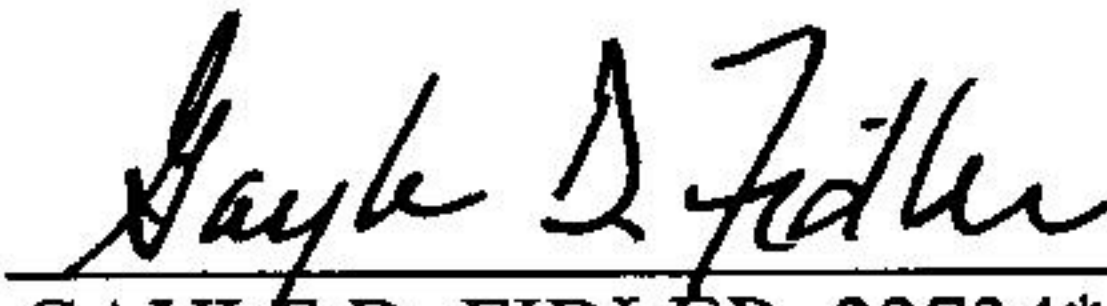
NOTICE OF CHARGES

Petitioner charges and alleges as follows:

1. Anngwyn Hamilton St.-Just, Ph.D., LPC, ("respondent") was licensed as a Professional Counselor in the state of Colorado on or about March 3, 1995, being issued license number 1140. Respondent has been so licensed at all times relevant herein.
2. The State Board of Licensed Professional Counselor Examiners ("Board") has jurisdiction over the person of respondent and the subject matter of this Notice of Charges.
3. On or about July 19, 2002, the Board ordered that respondent submit to a mental examination (the "examination") pursuant to § 12-43-224(2)(d), C.R.S.
4. Respondent was informed of this order and directed to submit to examination with Donna Marold, Ph.D., in a letter dated September 27, 2002 directing respondent to submit to an examination with Dr. Marold. (Attached hereto as Exhibit A)
5. The letter fully advised respondent that pursuant to the express terms of § 12-43-224(2)(d) and (e), C.R.S., she was required to submit to the mental status examination. Respondent was also advised that her refusal to submit to the examination would result in the summary suspension of her professional counselor license.
6. Respondent failed to schedule an appointment for a mental status exam with Dr. Marold and failed to appear for a mental status exam with Dr. Marold.
7. Respondent has failed to show good cause for her failure to submit to the mental status examination.
8. Respondent's failure to submit to the Board ordered examination is a violation of §§ 12-43-224(d) and (e) and 12-43-222(l)(b), C.R.S.
11. Pursuant to § 12-43-224(2)(c), C.R.S., the Board may summarily suspend respondent's license until such time as respondent submits to the required examination.

WHEREFORE, petitioner prays that the respondent's license to practice professional counseling remain suspended, until such time as the required mental examination is completed and such other relief as may be just and proper.

DATED this 15th day of January, 2004.



GAYLE D. FIDLER, 22734*

Assistant Attorney General

Business and Licensing Section

Attorney for State Board of Licensed Professional
Counselor Examiners and State Alcohol and Drug
Abuse Counselor Certification Program

1525 Sherman Street, 5th Floor

Denver, Colorado 80203

Telephone: (303) 866-5273

FAX: (303) 866-5691

*Counsel of Record

STATE OF COLORADO

OPTION TO ENGAGE IN ALTERNATIVE DISPUTE RESOLUTION (MEDIATION)

CASE NAME: Anngwyn Hamilton-St. Just

This agency disciplinary proceeding will be scheduled for hearing before an Administrative Law Judge of the Division of Administrative Hearings ("the Division"). The Division encourages parties to use alternative methods of dispute resolution and offers to the agency and the applicant the opportunity to engage in mediation.

Mediation is a process in which a neutral third party meets with the parties to assist the parties in reaching a negotiated settlement of the disciplinary proceeding. If the parties are able to reach an agreement in this way, they will control the outcome of this disciplinary case by agreeing to a solution, rather than having a solution imposed upon them by an Administrative Law Judge after a hearing.

In mediation, the mediator facilitates communication between the parties in a private, confidential and informal meeting. If the applicant has an attorney, the attorney will participate. The mediator has no decision-making authority; no settlement or solution to the disciplinary case will be achieved unless both parties are in agreement. A mediator can often help the parties generate creative options to resolve the disciplinary case, even though those options would not be available if the case proceeded to a hearing before an Administrative Law Judge. Mediators may be able to assist the parties in reaching a settlement, even where the parties' prior, unassisted negotiations have failed to result in an agreement.

If both parties agree to mediate this disciplinary case, they may notify the Division of Administrative Hearings, which will assign an Administrative Law Judge to conduct the mediation. All of the Administrative Law Judges in the Division are trained as mediators and are available to the parties for this purpose. An Administrative Law Judge who serves as a mediator acts in a completely confidential manner and has no contact with the judge to whom the date is assigned for hearing.

The parties should indicate whether they wish to engage in mediation by completing the information on the reverse side of this form. The respondent should return the completed form to the Division of Administrative Hearings, along with the answer to the Notice of Charges or Formal Complaint.

PLEASE COMPLETE REVERSE SIDE

X The **agency** in the disciplinary proceeding described on the preceding page believes that mediation of this dispute is appropriate and elects to engage in mediation before an Administrative Law Judge of the Division of Administrative Hearings.


(Signature of Agency Official or
Assistant Attorney General)

Date January 15, 2004

_____ The **respondent** in the disciplinary proceeding described on the preceding page believes that mediation of this dispute is appropriate and elects to engage in mediation before an Administrative Law Judge of the Division of Administrative Hearings.

Name of Respondent (Print or Type)

(Signature of Respondent or
Respondent's Attorney)

Date _____

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STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS

Amos D. Martinez
Administrator

1560 Broadway, Suite 1370
Denver, CO 80202
Phone (303) 894-7766
Fax (303) 894-7747
www.dora.state.co.us/mental-health

September 27, 2002

STATE OF COLORADO

Department of Regulatory Agencies
M. Michael Cooke
Executive Director

Division of Registrations
Rosemary McConl, Director



Bill Owens
Governor

Annwygn Hamilton-St. Just, Ph.D.
% Andreia Alexandria-Cisneros, Esquire
7114 West Jefferson Avenue, Suite 100
Lakewood, CO 80235

RE: Complaint Filed by Patricia Knox
Board Case #02.001(C)

Dear Dr. Hamilton-St. Just:

At its meeting on September 20, 2002, the Colorado Board of Licensed Professional Counselor Examiners (Board) reviewed the status of this case which shows that you have yet submitted to the mental status evaluation as ordered by the Board.

The Board directed staff to immediately schedule the Board-ordered mental status evaluation to be conducted by Donna Marold, Ph.D., 3595 S. Teller Street, Suite 404, Lakewood, CO 80235 (303) 941-3050. The mental status evaluation has been scheduled for Thursday, October 3, 2002, from 3:00 pm to 4:00 pm. The Board also directed staff to remind you that under the express terms of CRS 12-43-224(2)(d) and CRS 24-34-102(14)(d), you have already consented to this evaluation. Please be advised that if you disregard the statutory consent and refuse to submit to the mental status evaluation, the Board can summarily suspend or enjoin your professional counseling/psychotherapy practice until such time as you submit to the evaluation.

If you have any questions or concerns regarding this matter please feel free to me at (303) 894-7770.

Sincerely

Amos D. Martinez

Amos Martinez
Program Administrator

cc: Donna Marold, Ph.D.

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Fidler

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS
STATE OF COLORADO

CASE NO. PCE 2004-001

NOTICE OF INFORMAL PREHEARING CONFERENCE

**IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING AND IN THE STATE OF COLORADO
OF ANNGWYN HAMILTON-ST. JUST, Ph.D., LPC. LICENSE NO 1140.,**

Respondent.

The parties or (if represented) their counsel are hereby directed to appear for an informal prehearing conference on

**Thursday February 17, 2004
at 9:00 a.m.,**

in the offices of the Division of Administrative Hearings, 1120 Lincoln Street, Suite 1400, in Denver, Colorado. The purpose of this conference is to set the case for hearing on the merits, arrange for expedited discovery schedules and motion dates, schedule a prehearing conference (if appropriate) and to take any other action that will simplify the issues and aid in the prompt disposition of the controversy.

At the informal prehearing conference, a date for the hearing on the merits will be established. In addition, each party shall be prepared to discuss any proposed prehearing motions and dates will be established for the filing of motions and the responses thereto.

At this time each party shall be prepared to discuss proposed discovery, including the types of discovery intended to be used, the approximate dates discovery will be initiated and an anticipated discovery completion date. The parties shall also be prepared to list any anticipated discovery issues which will need to be reviewed by the Administrative Law Judge.

At the informal prehearing conference, the Administrative Law Judge will also establish a schedule for the filing of Prehearing Statements or other means of exchanging lists of witnesses and exhibits. This order will include deadlines for the submission and amendment of lists of witnesses and exhibits and a date for the filing of objections to authenticity of exhibits.

Any party who believes that a further prehearing conference will be of benefit may request such further conference at the time of the informal prehearing conference.

The parties should be prepared to consider any other matters that will simplify the issues or aid in the disposition of the controversy.

Dated this 10th day of February, 2004.


KATHLEEN MURAMOTO
Administrative Law Judge

CERTIFICATE OF SERVICE

I certify that a true and correct copy of the above **NOTICE OF INFORMAL PREHEARING CONFERENCE** was deposited in the U.S. Mail, postage prepaid, at Denver, Colorado, to:

Anngwyn Hamilton-St. Just
Colorado Center for Social Trauma
P.O. Box 1147
Jerome, AZ 86331

Andreia Alexandria-Cisneros
The Alexandria Law Firm, P.C.
9800 Mt. Pyramid Ct. Ste 400
Englewood, CO 80112

and was served by courier pickup on: Gayle D. Fidler, Assistant Attorney General, Business and Licensing Section, 1525 Sherman St., 5th Floor, Denver, CO 80203, on this 11th day of February, 2004.


Administrative Assistant

MAR 04 2004

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. PCE 2004-001

MOTION TO DISMISS

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING AND IN THE STATE OF COLORADO
OF ANNGWYN HAMILTON-ST.JUST, Ph.D., LPC, LICENSE NO. 1140,

Respondent.

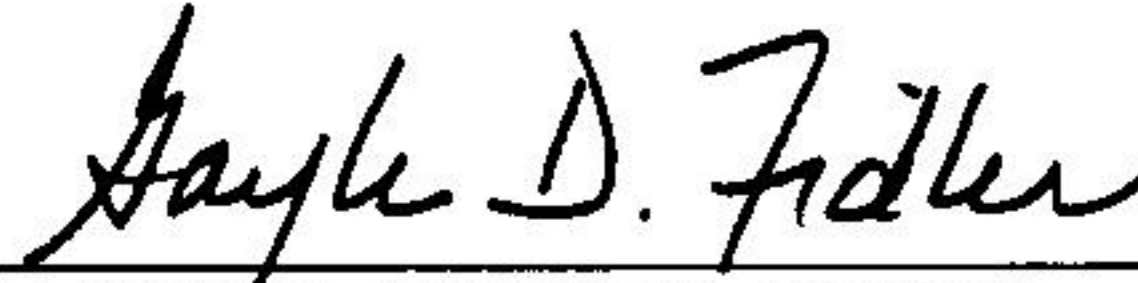
The Colorado State Board of Nursing ("Board"), by and through counsel, the
Colorado Attorney General, hereby moves to dismiss this matter. As grounds therefor, the
Board states as follows:

1. Respondent is not currently practicing psychotherapy in the state of Colorado and
has not practiced since approximately 2000, when she moved out of Colorado.
2. Respondent admits that she has not submitted to the Board ordered examination
because of a pending civil lawsuit involving related facts. The plaintiff in the civil suit has
stated her intention to use the Board's file concerning Respondent, which would include
information from any examination, in the civil suit.
3. Respondent agrees that she will remain summarily suspended until such time as
she submits to the examination ordered by the Board.
4. Neither a prehearing conference nor a hearing is necessary in this case in light of
the agreement by Respondent that she will be suspended pending the outcome of the civil
lawsuit and until such time as she submits to an examination.
5. Respondent joins in this motion.

WHEREFORE, the Board respectfully requests that this matter be dismissed, each
party to bear its own costs, and for such other relief as deemed proper and just.

DATED this 4th day of March, 2004.

KEN SALAZAR
Attorney General



GAYLE D. FIDLER, 22734*
Assistant Attorney General
Business and Licensing Section

Attorneys for Colorado State Board of Nursing

1525 Sherman Street, 5th Floor
Denver, Colorado 80203
Telephone: (303) 866-6170
FAX: (303) 866-5395
*Counsel of Record

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. PCE 2004-001

ORDER OF DISMISSAL

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING AND IN THE STATE OF COLORADO
OF ANNGWYN HAMILTON-ST.JUST, Ph.D., LPC, LICENSE NO. 1140,

Respondent.

This matter was scheduled for an informal prehearing conference on March 2, 2004, and for further proceedings. On March 4, 2004, the parties filed a Motion to Dismiss in which the parties requested that this action be dismissed. Respondent has acknowledged that his license to practice professional counseling is currently suspended due to her failure to submit to the Board-ordered examination. She further agrees that this suspension will remain in effect.

Accordingly, this matter is dismissed in its entirety.

DONE AND SIGNED this _____ day of March, 2004.

KATHLEEN MURAMOTO
Administrative Law Judge

FIDLER

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS
STATE OF COLORADO
CASE NO. PCE 2004-001

RECEIVED
MAR 10 2004

OFFICE OF THE
ATTORNEY GENERAL

ORDER OF DISMISSAL

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
ANNGWYN HAMILTON-ST. JUST, Ph.D., LPC, LICENSE NO. 1140,

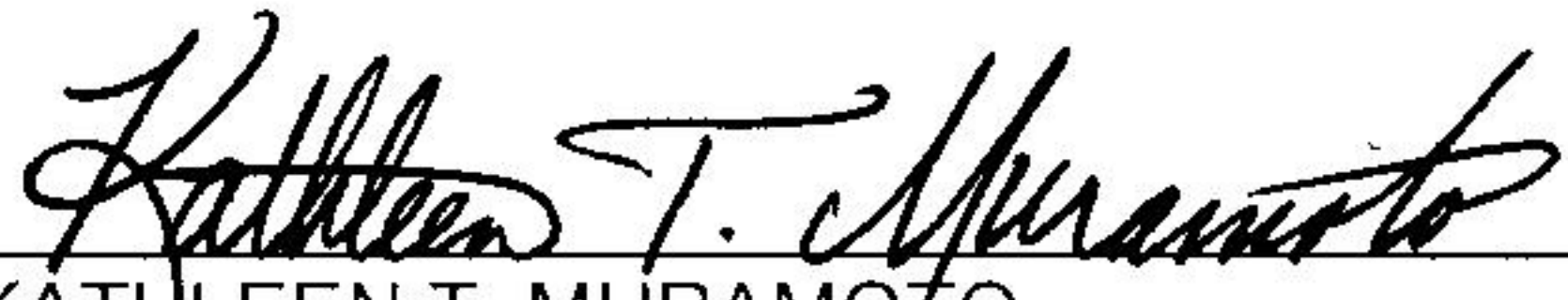
Respondent.

The undersigned Administrative Law Judge, having reviewed the Board's Motion to Dismiss with respect to the above-captioned proceeding and being fully advised in its premises, hereby does:

ORDER

The above-captioned proceeding is dismissed. The setting conference scheduled for March 12, 2004 is vacated.

DONE AND SIGNED this 9th day of March, 2004.

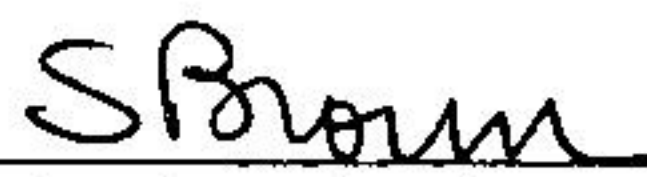

KATHLEEN T. MURAMOTO
Administrative Law Judge

CERTIFICATE OF SERVICE

I hereby certify that I have mailed a true and correct copy of the above **ORDER OF DISMISSAL** by placing same in the U.S. Mail, postage prepaid, at Denver, Colorado to:

Andreia Alexandria-Cisneros, Esq.
The Alexandria Law Firm, PC
9800 Mt. Pyramid Court, Suite 400
Englewood, CO 80112

and served same by courier pickup on: Gayle D. Fidler, Assistant Attorney General, Business and Licensing Section, 1525 Sherman Street, 5th Floor, Denver, CO 80203, on this 10th day of March, 2004.


Administrative Assistant

FIDLER

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS
STATE OF COLORADO

CASE NO. PCE 2004-001

NOTICE TO SET INFORMAL PREHEARING CONFERENCE

IN THE MATTER OF THE DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
ANNGWYN HAMILTON-ST. JUST, Ph.D., LPC, LICENSE NO. 1140,

Respondent.

A setting conference to reschedule the informal prehearing conference in this matter will be held on March 12, 2004 at 10:00 a.m., at the Division of Administrative Hearings, 1120 Lincoln Street, Suite 1400, Denver, Colorado 80203. You may participate in person or by telephone. Any party choosing to participate by telephone shall so notify the Division (telephone: 303-764-1460) prior to the date of the setting conference.

CERTIFICATE OF SERVICE

I hereby certify that I have mailed a true and correct copy of the above **NOTICE TO SET INFORMAL PREHEARING CONFERENCE** by placing same in the U.S. Mail, postage prepaid, at Denver, Colorado to:

Andreia Alexandria-Cisneros
The Alexandria Law Firm, P.C.
9800 Mt. Pyramid Ct., Ste. 400
Englewood, CO 80112

and via courier pickup to: Gayle D. Fidler, Assistant Attorney General, Business and Licensing Section, 1525 Sherman Street, 5th Floor, Denver, CO 80203, on this 5th day of March, 2004.

S Brown

Administrative Assistant